

IN THE FAMILY DIVISION
SECOND JUDICIAL DISTRICT COURT

HON. MASTER ALISON TESTA

FILED
Electronically
JV24-00105
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Alicia L. Lerud
Clerk of the Court
Transaction # 10267086

REPORTER: JAVS CLERK: T. GREENWELL
Case No. JV24-00104 JUVAB: EVAKAY BALDES Initial Filing Date: 1/23/2024
Case No. JV24-00105 JUVAB: ALEXIS CLARK Initial Filing Date: 1/23/2024
Hearing Date: 4/10/2024 Scheduled Start Time: 11:00:00
Case Type: JUV - ABUSE/NEGLECT
Event: SETTLEMENT CONFERENCE - ZOOM; AVD; RE: MOTHER; DOR 1/23/24

Minor Party Information:

MINR ALEXIS CLARK - @1413001 - excused

DOB: 2/24/2014 (10)

ICWA Status: NO / Tribal Affiliation: None

MINR EVAKAY BALDES - @1412997 - excused

DOB: 10/19/2009 (14)

ICWA Status: NO / Tribal Affiliation: None

Other Party Information:

PETR WASHOE COUNTY HUMAN SERVICES AGENCY - WCHSA

MOTH MEGAN MCCAFFERTY - @1299452 DOB: 8/25/1991 (32) ☒ video

FATH DONOVAN CLARK - @1299453 DOB: 3/20/1985 (39) - ☒ video

FATH JUSTIN BALDES - @1413000 DOB: 10/3/1990 (33) - NP

DA Tyler E. Beach, Esq. - ☒ video

APD Tirzah Mathews, Esq. - NP

PD Christine S. Sullivan, Esq. - NP
Irene Hart, Esq. ☒ video

ATTY Jennifer Jeans, Esq. - ☒ video

ATTY Neil E. M. Grad, Esq. - NP

Social Worker: Natasha Mieras and Jennie Ballou – video

☐ ☒ PARTIES SWORN.

PETITION:

☐ ☒ AMENDED: DA'S OFFICE TO FILE AMENDED PETITION

MEGAN MCCAFFERTY: ☐ ☒ SUBMIT

☐ ☐ OFFER OF PROOF MADE ☐ ☒ OFFER OF PROOF WAIVED

☐ ☒ PETITION SUSTAINED UNDER NRS 432B WITH A FINDING OF: ☐ ☒ NEGLECT

FINDINGS:

☐ ☐ COURT HAS JURISDICTION IN THIS MATTER PURSUANT TO NRS432B AND NRS 125A.

☐ ☐ BASED UPON SWORN TESTIMONY ☐ ☐ MOTHER ☐ ☐ FATHER IS / IS NOT FOUND TO BE INDIGENT AND COUNSEL IS / NOT APPOINTED.

☐ ☐ REASONABLE EFFORTS MADE PER NRS432B.393

☐ ☐ REASONABLE EFFORTS TOWARD REUNIFICATION NO LONGER REQUIRED

☐ ☐ AS INCONSISTENT WITH PLAN ☐ ☐ RE: _____

☐ ☐ CURRENT PLAN AND PLACEMENT IN _____ APPROVED

☐ ☐ NOTICE OF HEARING PROPERLY SERVED

☐ ☐ ICWA NOT APPLICABLE AND TO ADVISE IF THIS CHANGES

☐ ☐ AMENDMENTS:

ORDERS:

☐ ☐ WCHSA ☐ ☐ LEGAL CUSTODY ☐ ☐ PHYSICAL CUSTODY

☐ ☐ MOTHER ☐ ☐ FATHER(S) ☐ ☐ OTHER: _____ ☐ ☐ COMPLY WITH CASE PLAN & SERVICE AGREEMENT

☐ ☐ REC. ADOPTED ☐ ☒ ☐ REC. ADOPTED AS AMENDED ON THE RECORD

☐ ☐ AMENDMENTS: _____

☐ ☐ PARENTS TO SUBMIT FINANCIAL STATEMENT/COST OF CARE ☐ ☐ WAIVED ☐ ☐ ORDERED

☐ ☐ CASA APPOINTED ☐ ☐ CASA RELIEVED

☐ ☐ COUNSEL FOR _____ RELIEVED

☐ ☐ DISCRETION TO CLOSE BY LETTER REPORT AND ORDER

☐ ☐ CUSTODY ORDER TO BE OBTAINED

☐ ☐ WCHSA OFFER MAINTENANCE AND SPECIAL SERVICES TO MINOR CHILD(REN) AFTER AGE 18 PURSUANT TO NRS 432.030

☐ ☐ WCHSA MAY CONSENT TO NECESSARY AND/OR EMERGENCY MEDICAL/DENTAL TREATMENT FOR CHILD(REN).

☐ ☐ MOTHER ☐ ☐ FATHER(S) ☐ ☐ OTHER: SHALL PROVIDE WCHSA WITH IDENTIFYING INFORMATION, INCLUDING NAME, ADDRESS AND PHONE
NUMBER OF ANY RELATIVES

☐ ☐ ALL PRIOR ORDERS NOT IN CONFLICT WITH THIS ORDER REMAIN IN EFFECT

☐ ☐ VISITATION AS OUTLINED IN THE MFR FILED HEREIN

☐ ☐ ADDITIONAL ORDERS:

☐ ☐ PLR GRANTED

The clerk's minutes are not an order of the Court. They may be altered, amended, or superseded by a written order. If the matter was recorded via JAVS, a copy of the proceeding may be requested through the Second Judicial District Court Resource Center located at 1 South Sierra Street, Reno, NV, 89501. If the matter was reported via Court Reporter, a transcript must be requested directly from the Court Reporter.

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[] CASE DISMISSED
[] GUARDIANSHIP GRANTED PURSUANT TO NRS 432B.466-468
[] REUNIFIED [] OTHER:

PERMANENCY PLAN:

[] REUNIFICATION
[] APPLA
[] TERMINATION OF PARENTAL RIGHTS/RELINQUISHMENT [] ADOPTION
[] CONCURRENT PLANNING/REUNIFICATION [] _____
[] GUARDIANSHIP
[] OTHER _____
[] ESTIMATED DATE OF COMPLETION _____
[] COMPELLING REASONS NOT TO TPR APPROVED
[] AS IN REPORT [] AS STATED ON THE RECORD
[] REASONABLE EFFORTS TO FINALIZE PERMANENCY PLAN HAVE BEEN MADE
[] AS IN REPORT [] AS STATED ON THE RECORD

NEXT HEARING: 5-3-2024 at 1:30 p.m. – Evidentiary Hearing – vacated

7-10-2024 at 1:30 p.m. – SEMI – maintained

1-8-2025 at 3:00 p.m. – PERM - maintained

Court addressed the parties as to the hearing being held remotely; referred to the Mediation Memo -its understanding is that all parties are stipulating that this be a continued adjudicatory / dispositional hearing as to Ms. McCafferty; noted Mr. Clark is present – that his counsel is not present, nor was she expected to be – before going on the record, it was stated that he is here to observe; turned to the parties, asking how they wished to proceed.

PD: her client will submit to an amended petition.

Court acknowledged receipt of the amended petition.

Mother: sworn.

Court canvassed Megan McCafferty as to her submission to a First Amended Petition.

PD: waived a formal reading / offer of proof.

Court sustained the allegations in the First Amended Petition for Hearing as to Ms. McCafferty.

Discussion held with the DA as to the SWs present – SW Mieras was excused – invited to remain; SW Meiras left the hearing.

Counsel: acknowledged receipt of the dispositional report filed March 7, 2024, as well as the case plans.

SW: the children are doing well in their placement and visits are going well; visits have been moved to outside the FEC with the FEC being used as a check-in. She visited the home yesterday – there are improvements – no observed health or safety concerns, but there is a lot of clutter; concerned that adding two more bodies will increase the clutter. The Mother continues to be employed and she provided verification of income; the couple asked for assistance in getting caught up on rent and the Agency can assist. The Mother is participating in couples counseling - provided through the Veterans Administration; they have also been participating in parenting classes – went to three at a minimum; the Agency will provide them with taxi vouchers going forward so they may continue that. A dumpster will be delivered on Thursday to their home - to help them get rid of additional waste/clutter. The Mother participated in a mental health evaluation – they had to get some clarification as to some of the information provided. There is a lot of back and forth whether the Mother would sign a release / did sign a release so that the therapist through ACCS could verify the Mother had stopped with the private insurance that she had.

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SW: when she was at the home yesterday and spoke with the Mother, she said the paperwork was signed and all was good; however, the email she received from the therapist at ACCS indicated she had not gotten the signed release she needed, and it would be unethical to continue to provide services to her. Asked that the Mother complete a release of information again, so they are able to provide her with the mental health services.

Court interrupted the SW; acknowledged the Mother was raising her hand – let her know that she will have a chance to respond; turned back to the SW with apologies for the interruption.

SW: no further updates.

Jeans: both children are amazing – they are really bright and have a lot of insight – they report they enjoy their visits with their parents – finds them to be very appropriate; that they like their current placement – however, they want to return home as soon as possible. Evakay indicated that she felt her parents maybe needed a wake-up call and was in support of going to her Grandmother's house; she feels they have made a lot of changes/are working hard – feels it is appropriate for her and her sister to return home. They are doing well in school. Evakay said that she is not interested in having contact with her biological father.

PD: Ms. Sullivan reports she is working with the Mother on the releases – will let her update that since they last spoke. She reports her client is visiting consistently and visits are going well; that she is employed; that she is very bonded to the children and is hoping they are returned home soon; that they've been working hard on cleaning the home. She is glad to hear there are no safety hazards in the home. Requested costs of care be set to \$0.00.

Court turned to the Mother.

Mother: she has been in contact with ACCS – the release she signed was the wrong one and they didn't accept it; it doesn't seem that Jennifer wants to work with her; she has to talk with the management and after this will call them directly – she is going to give her a new therapist to work with; she didn't have any other therapist for them to release any information – hasn't since all of this has started. She saw the therapist at ACCS – thinks she went to four sessions before she stopped.

Court asked for clarification – who stopped.

Mother: the therapist at ACCS.

Court turned to the SW asking if that resolved/answered her question – it sounding like a new ROI is needed; asked if she was aware that the therapist didn't want to work with the Mother.

SW: no – that contradicts the information she knows.

Mother: when called this morning – it was confusing – she said that the release that she had originally signed was not the proper one and was going to send another one and then she asked if she was not seeing another therapist why she had to sign a release – she told her that it seemed that Jennifer just didn't want to work with her – she needed to request new services for a therapist.

Court asked if that was this morning.

Mother: yes.

Court turned to the SW – perhaps she and PD Sullivan can have everyone call together to see what is happening.

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Mother: she will be calling ACCS right after this to set up new counseling services - thinks just a problem – she thought she was still seeing a therapist when she wasn’t.

Court turned to the SW asking if she wanted to comment – it doesn’t want to leave this situation more confusing than it is.

SW: there have been multiple emails with the therapist, Ms. Sullivan and the Mother discussing what is occurring; oftentimes the statements the Mother makes are in opposition to what the therapist writes.

Court turned to the DA.

DA: she will reach out to Ms. Sullivan to see what information she can get – see if they can clarify that between herself, the SW and the PD; sounds like there is an issue with release of information, but they want to get that done – doesn’t want therapy to lapse for the Mother. No changes are being requested – would be just as to the Mother.

Court adopted the findings and recommendations as set forth in the dispositional report filed March 7, 2024, as they pertain to the Mother; costs of care to \$0.00.

Clerk recited the date/time of the next scheduled hearing; confirmed the Evidentiary Hearing set is vacated.

Court turned to counsel, asking if there was anything further.

DA: requested WDCR 9 is waived.

Court turned to counsel.

PD: request for a nine-month perm?

Court replied as to WDCR 9.

PD: apologized, just heard 9; yes.

Jeans: yes.

Court thanked the DA’s office for preparing that; concluded the hearing, absent anything further from counsel.